

OREGON STATE HOSPITAL

POLICY

SECTION 7: Patient Rights **POLICY: 7.016**

SUBJECT: Outdoors and Fresh Air Patient Rights

POINT PERSON: Director of Ombuds and Family Services

APPROVED: Sara Walker, MD

DATE: JULY 25, 2024


Interim Superintendent

SELECT ONE: ☐ New policy

☐ Minor/technical revision of existing policy

☒ Reaffirmation of existing policy

☐ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

- A. Oregon State Hospital (OSH) supports a patient's right to daily access the outdoors and fresh air and will provide opportunities for them to exercise these rights.
- A. This policy applies to all staff.

II. POLICY

- B. Patients will have the right to access the outdoors for at least 45 minutes each day, excluding gathering and transportation time. Patients also have the right to access fresh air in areas such as the air courts. An air court meets the requirement for accessing fresh air but does not meet the requirement for providing access to the outdoors.
 - 1. If a patient declines to go outside during the unit's scheduled time but later asks to go outside, the unit is not required to accommodate the request.
 - 2. A patient who has been placed on "restrict to unit (RTU)" status maintains their right to daily access the outdoors and fresh air.
 - 3. For safety, a patient who is in seclusion or restraint is not entitled to access the outdoors or fresh air for the duration of the intervention. Staff are not required to inform them of this.

- C. OSH may temporarily restrict a patient's right to access the outdoors when it would create a risk of significant harm to the patient or others. Only a registered nurse or physician/nurse practitioner may initiate the temporary restriction.
- D. When a patient is restricted from going outside, staff must immediately inform the patient and follow patient rights restrictions processes delineated in the patient rights restrictions policy, including obtaining a psychiatrist/psychiatric mental health nurse practitioner (PMHNP) order (see OSH Policy 7.015, "Patient Rights Restrictions Requirements").
- E. Per the patient rights restrictions policy, the Superintendent, Administrator on Duty, or Chief Medical Officer may establish a blanket restriction preventing all patients from going outside or accessing air courts when the outdoor temperature is more than 90 degrees or for other medical or safety reasons.
 - 1. As directed by the patient rights restrictions policy, unit staff must verbally inform patients of the reason for the blanket restriction and when the restriction will end. They must also post written information in an area where patients may view it (e.g., "It is over 90 degrees outside, so we cannot go to the quads until it cools off").
 - 2. Per OSH's patient rights restrictions policy, during such blanket restrictions a psychiatrist/PMHNP order is not required for each patient. While in effect, interdisciplinary treatment teams (IDTs) are not required to document individual restriction plans in treatment care plans (TCPs) or submit the forms required by that same policy (see OSH Policy 7.015, "Patient Rights Restrictions Requirements").
 - 3. OSH will designate outdoor areas for patients to use while a blanket restriction is in effect, unless the outdoor air quality is too unhealthy to safely be outside or in air courts. As needed, OSH will designate alternate times for patients to go outside.
- F. If the unit's staffing numbers are such that staffing both the unit and outdoors would create unreasonable risk of harm to the patient or others, the unit's nurse manager may request the program nurse manager approve canceling that day's scheduled time to go outside. The PNM may only approve the request one day at a time. They must promptly report the decision to the OSH Ombuds, Program Director, Director of Nursing, and Chief Nursing Officer.
- G. Staff are responsible to consider patient medical and physical needs when they are outside and to provide for their safety as needed (e.g., providing water, sunscreen, rain gear, gloves).
- H. Staff, including OSH leadership, will involve or consult with the OSH Ombuds on all patient rights issues, including clarification and interpretation of patient rights, and before implementing related process or policy changes.

- I. OSH follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- J. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. "Staff" includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).

IV. RELATED OSH POLICIES AND PROTOCOLS

7.005 Patient rights

7.015 Patient rights restrictions requirements

V. REFERENCES

42 CFR § 482.13(c)2.

Oregon Administrative Rule § 309-033-0270.

Oregon Administrative Rule § 309-035-0175.

Oregon Revised Statute § 426.385.

Oregon Revised Statute § 430.210.